

Andhra Pradesh Commission for Backward Classes Act, 1993

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State of Andhra Pradesh - Act

Andhra Pradesh Commission for Backward Classes Act, 1993

ANDHRA PRADESH

India

Andhra Pradesh Commission for Backward Classes Act, 1993

Act 20 of 1993

Published on 29 March 2000

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Andhra Pradesh Commission for Backward Classes Act, 1993

(Act

No. 20 of 1993

)

Last Updated 22nd October, 2019

Statement and Objects and Reasons - (Act No. 2 of 2000). - According to sub-section (1) of Section 4 of the Andhra Pradesh Commission for Backward Classes Act, 1993, every Member of the Commission shall hold office for a term of three years from the date he assumes office.

Occasions may arise when it becomes necessary for Government to extend the term of the members for some more time in public interest. Since Section 4 of the said Act does not provide for extension of the term, it is decided to amend the said sub-section (1) of Section 4 enabling the Government to extend the term of three years of the Member of the

Commission for a period not exceeding six months at a time.

The Bill seeks to give effect to the above decision.

Appended to L.A. Bill No. 3 of 2000.

An Act to constitute a commission for the Backward classes other than scheduled castes and scheduled tribes in the state of Andhra Pradesh and to provide for matters connected therewith or incidental thereto BE it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Forty fourth Year of the Republic of India as follows : -

Chapter 1

Preliminary

1.

Short title and extent.

(1)

This Act may be called the Andhra Pradesh Commission for Backward Classes Act, 1993.

(2)

It extends to the whole of the State of Andhra Pradesh.

2.

Definitions.

- In this Act unless the context otherwise requires,

(a)

"backward classes" for the purpose of this Act, means such backward classes of citizens of Andhra Pradesh other than the Scheduled Castes and the Scheduled Tribes as may be specified by the State Government in the lists;

(b)

"Commission" means the Andhra Pradesh Commission for Backward Classes constituted under section 3;

(c)

"Government" means the State Government of Andhra Pradesh;

(d)

"lists" means lists prepared by the Government from time to time for the purposes of making provision for the reservation of appointments of posts in favour of the backward classes of citizens which, in the opinion of the Government, are not adequately represented in the services under the Government and in any local authority or other authority in the State;

(e)

"member" means a member of the Commission and includes the Chairperson;

(f)

"notification" means, a notification published in the Andhra Pradesh Gazette and the word notified' shall be construed accordingly;

(g)

"prescribed" means prescribed by rules made under this Act.

Chapter 2

Andhra Pradesh Commission for Backward Classes

3.

Constitution of the Andhra Pradesh Backward Classes Commission.

(1)

The Government may constitute a body to be known as the Andhra Pradesh Commission for Backward Classes to exercise the powers conferred on and to perform the functions assigned to it under this Act.

(2)

The Commission shall consist of following Members nominated by the Government:-

(a)

a Chairperson, who is or has been a Judge of High Court or a retired Judge of the Supreme Court;

(b)

a Social Scientist;

(c)

two persons, who have special knowledge in matters relating to backward classes; and

(d)

A Member-Secretary who shall be an officer of the Government in the rank of Secretary to the Government.

4.

Term of office and conditions of service of Chairperson and Members.

(1)

Every Member shall hold office for a term of three years from the date he assumed office.

[Provided that the Government, may by notification, and for reasons specified therein extend the term of office of the member for a period not exceeding six months at a time.]

[Added by Act No. 2 of 2000, dated 29.3.2000.]

(2)

A member may by writing under his hand addressed to the Government resign from the office of Chairperson or as the case may be of Member at any time.

(3)

The Government may remove a person from the office of Member if that person;

(a)

becomes an undischarged insolvent;

(b)

is convicted and sentenced to imprisonment for an offence which in the opinion of the Government involves moral turpitude;

(c)

becomes of unsound mind and stands so declared by a competent court;

(d)

refuses to act or becomes incapable of acting;

(e)

is, without obtaining leave of absence from the Commission, absents himself from three consecutive meetings of the Commission;

(f)

has in the opinion of the Government, so abused the position of Chairperson or Member as to render that person's continuance in office detrimental to the interests of the backward classes or the public interest;

Provided that no person shall be removed under this clause until that person has been given an opportunity of being heard in the matter.

(4)

A vacancy caused under sub-section (2) or otherwise shall be filled in by fresh nomination.

(5)

The salaries and allowances payable to and the other terms and conditions of service of the Chairperson and Members shall be such as may be prescribed.

5.

Officers and other employees of the Commission.

(1)

The Government may provide the Commission with such officers and employees as may be necessary for the efficient performance of the functions of the Commission.

(2)

The salaries and allowances payable to and the other terms and conditions of service of the officers and other employees appointed for the purpose of the Commission shall be such as may be prescribed.

6.

Salaries and allowances to be paid out of grants.

- The salaries and allowances payable to the Chairperson and Members and the administrative expenses, including salaries, allowances and pensions payable to the officers and other employees referred to in section 5 shall be paid out of the grants referred to in sub-section (1) of section 12.

7.

Vacancies etc., not to invalidate proceedings of the Commission.

- No act or proceeding of the Commission shall be invalid on the ground merely of the existence of any vacancy or

defect in the constitution of the Commission.

8.

Procedure to be regulated by the Commission.

(1)

The Commission shall meet as and when necessary at such time and place as the Chairperson may think fit.

(2)

The Commission shall regulate its own procedure.

(3)

All orders and decisions of the Commission shall be authenticated by the Member- Secretary or any other officer of the Commission duly authorised by the Member-Secretary in this behalf.

Chapter 3

Functions and Powers of the Commission

9.

Functions of the Commission.

(1)

The Commission shall examine requests for inclusion of any class of citizens as a backward class in the lists and hear complaints of over inclusion or under inclusion of any backward class in such list and tender such advice to the Government as it deems appropriate.

(2)

The Commission shall examine and make recommendations on any other matter relating to the backward classes that may be referred to it by the Government from time to time.

(3)

It shall be competent for the Commission at the request of the Government to make an interim report in regard to any Castes or Classes in whose cases urgent action under the Act is, in the opinion of the Government necessary Any action taken by the Government on the basis of such report shall be subject to review with prospective effect as and when the final report of the Commission is received.

(4)

The Commission shall enquire into specific complaints with respect to the non-observance of the rule of reservation in the admissions into educational Institutions and also reservation of appointments to posts/services under the Government and other local authority or other authority in the State, as applicable to the listed Backward Classes and furnish its report to the Government.

10.

Powers of the Commission.

- The Commission shall, while performing its functions under sub-section (1) of section 9, have all the powers of a Civil Court trying a suit and in particular in respect of the following matters namely:-

(a)

summoning and enforcing the attendance of any person from any part of State and examining him on oath;

(b)

requiring the discovery and production of any document;

(c)

receiving evidence on affidavits;

(d)

requisitioning any public record or copy thereof from any court or office;

(e)

issuing commissions for the examination of witnesses and documents; and

(f)

any other matter which may be prescribed.

11.

Periodic revision of list by the Government.

(1)

The Government may at any time, and shall, at the expiration of ten years from the coming into force of this Act and

every succeeding period of ten years thereafter, undertake revision of the lists with a view to excluding from such lists those classes who have ceased to be backward classes or for including in such lists new backward classes.

(2)

The Government shall while undertaking any revision referred to in sub-section (1) consult the Commission.

Chapter 4

Finance, Accounts and Audit

12.

Grants by the Government.

(1)

The Government shall after due appropriation made by the Legislative Assembly by law in this behalf pay to the Commission by way of grants such sums of money as the Government may think fit for being utilised for the purpose of this Act.

(2)

The Commission may spend such sums as it thinks fit for performing the functions under this Act and such sums shall be treated as expenditure payable out of the grants referred to in sub-section (1).

13.

Accounts and Audit.

(1)

The Commission shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form as may be prescribed by the Government in consultation with the Accountant General, Andhra Pradesh.

(2)

The accounts of the Commission shall be audited by the Accountant General, Andhra Pradesh at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable, by the Commission to the Accountant General, Andhra Pradesh.

(3)

The Accountant General, Andhra Pradesh and any person appointed by him in connection with the audit of the accounts of the Commission under this Act, shall have the same rights and privileges and the authority in connection with such audit as the Accountant General Andhra Pradesh generally has in connection with the audit of Government accounts and in particular shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Commission.

14.

Annual Report.

- The Commission shall prepare in such form and at such time for each financial year as may be prescribed its annual report giving a full account of its activities during the previous financial year and forward a copy thereof to the Government.

15.

Annual Report and audit report to be laid before Assembly.

- The Government shall cause the annual report together with a memorandum of action taken on the advice tendered by the Commission under section 9 and the reasons for the non-acceptance, if any, of any such advice and the audit report to be laid as soon as may be after they are received before the Legislative Assembly.

Chapter 5

Miscellaneous

16.

Chairperson, Members and employees of the Commission to be public servants.

- The Chairperson, Members and employees of the Commission shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.

17.

Power to make rules.

(1)

The Government may, by notification in the Official Gazette, make rules for carrying out all or any of the provisions of

this Act.

(2)

In particular and without prejudice to the generality of the foregoing powers such rules may provide for all or any of the following matters, namely;

(a)

Salaries and allowances payable to and the other terms and conditions of service of the Chairperson and Members under subsection (5) of section 4 and of officers and other employees under subsection (2) of section 5;

(b)

the form in which the annual statement of accounts shall be maintained under sub-section (1) of section 13;

(c)

the form and the time of which the annual report shall be prepared under section 14;

(d)

any other matter which is required to be or may be prescribed.

(3)

Every rule made under this Act, shall immediately after it is made be laid before the Legislative Assembly of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following the Legislative Assembly agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified have effect only in such modified form or shall stand annulled, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

18.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may by order published in the Official Gazette make provisions not inconsistent with the provisions of the Act as appear to them to be necessary or expedient for removing the difficulty.

(2)

Every order made under this section shall, as soon as may be after it is made, be laid before the Andhra Pradesh Legislative Assembly.

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